

Noise Control Ordinance

(Cap. 400)

Contents

Section		Page
	Part I	
	Preliminary	
1.	Short title and commencement	1-2
2.	Interpretation	1-2
3.	Appointment of Noise Control Authority	1-10
	Part II	
	Control of Noisy Activities	
	Noise from Domestic Premises and Public Places	
4.	Noise at night or on a general holiday	2-2
5.	Noise at any time	2-2
5A.	Exemptions from sections 4 and 5	2-4
	Noise from Construction Sites	
6.	Noise from construction sites	2-6
7.	Noise from construction work contrary to regulations	2-8
8.	Construction noise permits	2-10
8A.	Designated areas	2-16

Section		Page
9.	Technical Memoranda relating to noise emanating from construction sites	2-16
	Noise from Places other than Domestic Premises, Public Places or Construction Sites	
10.	Technical Memoranda relating to noise emanating from places other than domestic premises, public places or construction sites	2-18
11.	Placing of Technical Memorandum before Legislative Council	2-20
12.	Commencement of Technical Memoranda	2-24
13.	Noise abatement notices	2-24
	Noise from Intruder Alarm Systems	
13A.	Intruder alarm system installed in any premises	2-28
13B.	Intruder alarm system installed in any vehicle	2-30
	Part III	
	Control of Noisy Products	
14.	Manufacture, etc. of products not in compliance with noise standards	3-2
15.	Manufacture, etc. of products not complying with noise standards within warranty period	3-6
16.	Authority may require product for testing	3-8
17.	Use of products not in compliance with noise standards	3-12

Section		Page
17A.	Direction regarding use of prescribed product	3-14
	Part IV	
	Appeals	
18.	Appeals against refusal of Authority to issue construction noise permit, etc. under section 8	4-2
19.	Appeals against service of notice by Authority under section 13 or 16	4-4
20.	Appeal Board	4-6
21.	Constitution of Appeal Board	4-8
22.	Supplementary provisions	4-12
23.	Case may be stated for Court of Appeal	4-14
	Part V	
	Enforcement	
24.	Authorized officers	5-2
25.	Powers of entry and inspection, etc.	5-2
26.	Offences in relation to section 25	5-6
	Part VI	
	Miscellaneous	
27.	Regulations	6-2
28.	Offence to disclose confidential information obtained officially	6-4
28A.	Liability of directors	6-6
28B.	Restrictions on application of section 28A(1)	6-8

Section	Page
28C. Codes of practice	6-10
29. Protection of Government and public officers	6-12
30. Advisory Council on the Environment	6-12
31. Limit of time for laying information, etc.	6-12
32. Prosecution of offences	6-14
33. Defence to proceedings under section 4, 5, 6, 7, 13 or 17	6-14
34. Proof of permit, etc.	6-16
35. Exemptions from provisions of the Ordinance	6-16
36. Application in respect of aircraft noise	6-18
37. Application of section 13 to MTR Corporation Limited and Kowloon-Canton Railway Corporation	6-18
38. Application to Government	6-18
39. Service of notices	6-22
40-41. <i>(Omitted as spent)</i>	6-22
Schedule Notice under Section 28B(1)(b) of the Noise Control Ordinance (Cap. 400) to Director or Officer of Body Corporate	S-2